



File No.: EXP202401110

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA with NIF B04859575 (hereinafter, the complained party), and upon noticing indications of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202313081.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send this Agency the information and documentation indicated. The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on October 8, 2023. Although the notification was validly carried out by electronic means, for informational purposes, two copies were sent by postal mail, with the transfer being delivered on November 1, 2023, as evidenced by the acknowledgments of receipt in the file.

On October 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, an information request was sent to the complained party twice, related to the complaint indicated in the first section, requesting that, within ten working days, they present to this Agency the information and documentation specified.

THIRD: The aforementioned information request was notified on both occasions in accordance with the rules established in the LPACAP.

On November 30, the request was delivered to the complained party by postal means, as evidenced by the acknowledgment of receipt in the file.

After the granted period elapsed without this Agency receiving any response from the complained party, the request was sent again via electronic means, not being collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, and therefore understood to have been notified in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on December 30, 2023.

FOURTH: Regarding the requested information, the complained party has not sent any response to this Spanish Agency for Data Protection.

FIFTH: On February 7, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The agreement to initiate the present sanctioning procedure was notified, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated February 22, 2024, after being returned to sender by the postal service as unknown, despite having been sent to the tax address of the complained party provided by the State Agency for Tax Administration, as evidenced in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party by electronic means through the single enabled electronic address.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the imputed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the imputation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, taking into account that the complained party has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

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EIGHTH: According to the report gathered from the AXESOR tool, the entity GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA is a company established in 2017 for which no financial information is available.

In light of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: The information requests indicated in the second and third recitals were notified in accordance with the provisions of the LPACAP.

SECOND: The responding party has not responded to the information requests made by this Agency within the deadlines granted for this purpose in the framework of the investigation proceedings of file EXP202313081.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In light of the facts presented, it is considered that the responding party has not provided the information requested by the Spanish Agency for Data Protection.

With the indicated conduct of the responding party, the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the responding party for violating Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

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“a) order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of their functions.”

III

Classification and qualification of the infringement

The facts presented are considered to constitute an infringement attributable to the responding party.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.”

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a coherent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

In light of the facts presented, it is considered appropriate to impose a sanction on the responding party for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of €4,000.00.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA, with NIF B04859575, a fine of 4,000.00 euros (FOUR THOUSAND euros) for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA, with NIF B04859575, to provide, in accordance with the investigative power set forth in Article 58.1.a) of the GDPR, the information requested in the requirements made within the framework of the proceedings numbered EXP202313081 and referred to in the background of this resolution, within ten working days from the date this resolution becomes final and enforceable. It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

THIRD: TO NOTIFY this resolution to GESTIÓN DE PATRIMONIOS ANFIPOLIS SOCIEDAD DE RESPONSABILIDAD LIMITADA.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for

reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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